

In the Supreme Court of the United States

U.S. DEPARTMENT OF HOMELAND SECURITY, ET AL., APPLICANTS

v.

D.V.D., ET AL.,

**APPLICATION FOR A STAY OF THE INJUNCTION
ISSUED BY THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MASSACHUSETTS
AND REQUEST FOR AN IMMEDIATE ADMINISTRATIVE STAY**

D. JOHN SAUER
*Solicitor General
Counsel of Record
Department of Justice
Washington, D.C. 20530-0001
SupremeCtBriefs@usdoj.gov
(202) 514-2217*

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PARTIES TO THE PROCEEDING

Applicants (defendants-appellants below) are the U.S. Department of Homeland Security; Kristi Noem, in her official capacity as Secretary of Homeland Security; Pamela J. Bondi, in her official capacity as Attorney General of the United States; and Antone Moniz, in his official capacity as Superintendent of the Plymouth County Correctional Facility.

Respondents (plaintiffs-appellees below) are D.V.D.; M.M.; E.F.D.; and O.C.G.

RELATED PROCEEDINGS

United States District Court (D. Mass.):

D.V.D. v. DHS, No. 1:25-cv-10676 (Mar. 28, 2025) (order granting in part plaintiffs' motion for temporary restraining order)

D.V.D. v. DHS, No. 1:25-cv-10676 (Mar. 29, 2025) (order denying defendants' motion to stay temporary restraining order)

D.V.D. v. DHS, No. 1:25-cv-10676 (Apr. 18, 2025) (order granting plaintiffs' motion for class certification and granting in part plaintiffs' motion for preliminary injunction)

D.V.D. v. DHS, No. 1:25-cv-10676 (Apr. 18, 2025) (order denying defendants' motion for stay of preliminary injunction pending appeal)

D.V.D. v. DHS, No. 1:25-cv-10676 (May 21, 2025) (memorandum clarifying preliminary injunction)

D.V.D. v. DHS, No. 1:25-cv-10676 (May 26, 2025) (order denying motion for reconsideration)

United States Court of Appeals (1st Cir.):

D.V.D. v. DHS, No. 25-1311 (Apr. 7, 2025) (order denying defendants' motion for stay pending appeal)

D.V.D. v. DHS, No. 25-1393 (May 16, 2025) (order denying defendants' motion for stay pending appeal)

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No. 24A_____

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Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants United States Department of Homeland Security (DHS), et al.—respectfully files this application for a stay of the injunction issued by the United States District Court for the District of Massachusetts (App., *infra*, 6a-53a), pending the disposition of the government’s appeal to the United States Court of Appeals for the First Circuit and, if the court of appeals affirms the injunction, pending the timely filing and disposition of a petition for a writ of certiorari in this Court. Given the urgency of the circumstances and the government’s ongoing irreparable injury in the diplomatic, immigration, and foreign-policy spheres, the Solicitor General also respectfully requests an immediate administrative stay of the district court’s injunction pending the resolution of this application.

This case addresses the government’s ability to remove some of the worst of the worst illegal aliens. The United States is facing a crisis of illegal immigration, in no small part because many aliens most deserving of removal are often the hardest

to remove. When illegal aliens commit crimes in this country, they are typically ordered removed. But when those crimes are especially heinous, their countries of origin are often unwilling to take them back. As a result, criminal aliens are often allowed to stay in the United States for years on end, victimizing law-abiding Americans in the meantime.

The Executive Branch has taken steps to resolve this problem by removing aliens to third countries that have agreed to accept them. Convincing third countries to accept some of the most undesirable aliens requires sensitive diplomacy, which involves negotiation and the balancing of other foreign-policy interests. Until recently, those efforts were working. Just last week, the government was in the process of removing a group of criminal aliens who had been in the country for years or decades after receiving final orders of removal, despite having committed horrific crimes. These aliens include one who was convicted of sexually abusing a child victim for the better part of a decade, beginning when the victim was seven years old. Another was convicted of sexually abusing a mentally handicapped woman with the mental capacity of a three-year-old. At least two others were convicted of murder.¹

All these aliens have already received extensive legal process. All were tried

¹ These aliens illustrate the government's urgent and compelling interest in proceeding expeditiously with third-country removals: (1) an alien convicted of armed robbery under a final order of removal for 26 years, who was convicted of additional armed robbery and kidnapping after being ordered removed; (2) an alien subject to a final order of removal for 13 years with convictions for arson, drug trafficking, and other felonies, and who committed attempted first-degree murder by stabbing a victim with a knife after being ordered removed; (3) an alien subject to a final order of removal convicted of the first-degree murder of a German tourist in 1994, and of gravely injuring her husband; (4) an alien subject to a final order of removal for 20 years who was convicted of second-degree murder for stabbing the victim with a knife; (5) an alien convicted of repeatedly sexually assaulting a minor from 2011 to 2017, which began when the victim was approximately seven years old; (6) an alien convicted of the sexual assault of a mentally disabled victim with the mental capacity equal to that of a three-year-old; and (7) an alien convicted of first-degree murder for killing two innocent bystanders in a gang-related shooting. See App., *infra*, 74a-82a.

and convicted in a criminal court, with all the process and protections afforded to criminal defendants. All were adjudicated removable.

A single federal district court, however, has stalled these efforts nationwide. On behalf of a nationwide class of aliens with final orders of removal, the district court issued an extraordinary preliminary injunction that restrains DHS from exercising its undisputed statutory authority to remove an alien to a country not specifically identified in his removal order (*i.e.*, a “third country”), unless DHS first satisfies an onerous set of procedures invented by the district court to assess any potential claim under the Convention Against Torture (CAT), see 8 U.S.C. 1231 note, no matter how facially implausible.

Those judicially created procedures are currently wreaking havoc on the third-country removal process. In addition to usurping the Executive’s authority over immigration policy, the injunction disrupts sensitive diplomatic, foreign-policy, and national-security efforts. Recent events vividly illustrate the injunction’s pathologies. Last week, the district court required the government to halt the ongoing third-country removal of the aforementioned criminal aliens to South Sudan. The court did so by exploiting an open-ended term in its injunction, holding that the government did not give them a “meaningful opportunity” to raise a fear of torture in that country— notwithstanding that they were all notified they were going to be removed there, and that none expressed any fear at the time, or even that day. Having slammed on the brakes while these aliens were literally mid-flight—thus forcing the government to detain them at a military base in Djibouti not designed or equipped to hold such criminals—the court then retroactively “clarified” its injunction to impose an additional set of intrusive and onerous procedures on DHS. As a result, the United States has been put to the intolerable choice of holding these aliens for *additional* proceedings

at a military facility on foreign soil—where each day of their continued confinement risks grave harm to American foreign policy—or bringing these convicted criminals *back* to America. Most telling: The injunction creates such a diplomatic and logistical morass that the Secretaries of State and Defense both submitted declarations in the district court last Friday to stress the “significant and irreparable” harm that its orders impose. App., *infra*, 71a ¶ 3 (Rubio); D. Ct. Doc. 131 (May 23, 2025) (Hegseth).

In addition to being misguided, these court-ordered procedures are unlawful. To issue its injunction, the district court disregarded three separate sets of jurisdictional bars that Congress adopted to preserve the primacy of the Executive Branch in carrying out the core sovereign function of removing aliens from this country. Having done so, the court wielded its own subjective “sense” of “fairness,” App., *infra*, 51a n.46, under the guise of constitutional due-process principles, to second-guess the Executive’s judgments about how best to remove dangerous aliens while complying with this Nation’s CAT obligations. These judicially invented policies, and the district court’s aggressive enforcement of them, cause severe harm to the Executive Branch. Because the court of appeals declined to stay the injunction despite all of that, this Court’s intervention is urgently needed.

The Immigration and Nationality Act (INA), 8 U.S.C. 1101 *et seq.*, entrusts the Executive Branch with executing removal orders, and ensuring that aliens who have been ordered removed are in fact removed from the United States. The INA gives the Executive broad authority to remove aliens to various countries—including, where other options are unavailable, any country willing and able to accept them. See 8 U.S.C. 1231(b). Of course, under the statute and regulations implementing CAT, the Executive will not remove an alien to any country where he is likely to be tortured—*i.e.*, the extreme scenario where the alien is likely to face severe pain or suf-

fering intentionally inflicted by the hand or with the consent of a public official.

While the INA authorizes the Executive Branch to remove aliens to third countries after a final order of removal has been issued, it is silent as to the particular process that aliens must receive under CAT. Instead, Congress has delegated that decision entirely to the Executive Branch. See 8 U.S.C. 1231 note. In March 2025, DHS issued guidance detailing its policy in this context, App., *infra*, 54a, after President Trump issued an Executive Order directing DHS to take action against the many aliens who stay in this country for years on end despite being subject to final orders of removal, see *id.* at 56a § 1.

The DHS guidance establishes a two-track system to address such aliens, who have been ordered removed but for various reasons cannot be sent to a country specifically designated in their removal orders. Where the United States has received a sufficient assurance from a third country that no aliens will be tortured upon removal there, DHS policy provides that the Executive can remove an alien to that country without further process. App., *infra*, 54a-55a. But for countries where the United States has not received such an assurance, DHS policy provides that the alien is entitled to notice of the third country and an opportunity for a prompt screening of any asserted fear of being tortured there. *Id.* at 55a.

After certifying a class of aliens with final orders of removal, the district court held that those procedures violate due process. And it enjoined the government from “removing any alien to a third country” unless it follows a new set of procedures that the court devised from whole cloth, App., *infra*, 51a-53a—and then later “clarified” in a way that magnifies their onerous, intrusive nature, *id.* at 1a-2a.

That injunction runs afoul of multiple independent jurisdictional bars. First, 8 U.S.C. 1252(f)(1) prohibits lower federal courts from issuing classwide relief that

“enjoin[s] or restrain[s] the operation of [specified] provisions” in the INA. *Ibid.* Specifically, Section 1252(f)(1) prohibits classwide “injunctions that order federal officials to take or refrain from taking actions to enforce, implement, or otherwise carry out” their statutory authority to conduct third-country removals. *Garland v. Aleman Gonzalez*, 596 U.S. 543, 550 (2022). Contrary to the district court’s holding (App., *infra*, 29a), it makes no difference that respondents’ claim is “based on” CAT, which is not one of the statutory provisions specified in Section 1252(f)(1). It is irrelevant that the court relied on a provision not specified in Section 1252(f)(1) to *justify* its injunction, because what matters is that the injunction unquestionably *restrains the operation* of a provision that is specified in Section 1252(f)(1)—namely, DHS’s implementation of Section 1231(b)’s authorization of third-country removals. See *Aleman Gonzalez*, 596 U.S. at 552-554 and n.4.

In addition, the immigration laws specifically strip district courts of jurisdiction to review claims challenging the government’s implementation of CAT, and generally strip them of jurisdiction to adjudicate freestanding suits arising from actions taken to execute removals—requiring such claims to be brought, if at all, only in a petition for review of a final removal order filed in a court of appeals. See 8 U.S.C. 1252(a)(4) and (5), (b)(9), and (g); see also 8 U.S.C. 1231 note. Both sets of bars apply here in full: respondents are demanding greater process for their CAT claims, and they seek to prevent the execution of their removal orders until they get that process. The district court held itself above these limits, largely by ignoring the statutory text and emphasizing the importance of judicial review. That is no way to read any statute, but especially not these. The INA reflects a comprehensive effort by Congress to restrict judicial review to “protect[] the Executive’s discretion from the courts.” *Reno v. American-Arab Anti-Discrimination Committee*, 525 U.S. 471, 486 (1999). The in-

junction below intrudes upon the core executive functions Congress sought to shield.

The district court’s analysis of the merits is also fatally flawed. Without any mooring in law, the district court revised the government’s policy to better comport with the court’s “sense” of “fairness.” App., *infra*, 51a n.46. It rejected the government’s approach to utilizing country-wide assurances as to the treatment of removed aliens, instead insisting that “individualized assessment[s]” are required. *Id.* at 47a. But as this Court has made clear, the “Judiciary is not suited to second-guess such determinations,” in either substance or scope, given their “foreign policy” ramifications. *Munaf v. Geren*, 553 U.S. 674, 702 (2008). The district court also crafted new timelines, ordering that aliens must be given at least 10 days to raise a CAT-based fear, and another 15 to contest any adverse finding as to that claim. App., *infra*, 51a-52a, 2a. But it typically takes “minutes,” not weeks, for an alien to express a fear of being tortured in a country. *Id.* at 62a ¶11. These arbitrary deadlines are also out of step with analogous immigration law, which tolerates far more efficient proceedings.

All of this is particularly unjustifiable because many class members are aliens who have never been admitted into the United States. Thus, they do not have due-process rights to any additional removal procedures beyond the ones the political branches have provided. See *DHS v. Thuraissigiam*, 591 U.S. 103, 138-140 (2020).

The district court’s injunction jeopardizes the public interest. The injunction prevents DHS from efficiently removing aliens, delaying third-country removal by at least 25 days for every alien who raises a CAT claim, no matter how frivolous. Given practical realities that the court neither appreciated nor acknowledged, the consequence of such delays is that ICE will often need to restart the “entire” removal process afresh, freezing things as the government attempts to rework arrangements with foreign countries. App., *infra*, 68a ¶ 29. Meanwhile, the very aliens whose removal

is most urgent will be allowed to remain—and often will be released, given resource limitations and legal requirements, to the peril of law-abiding Americans. *Id.* at 64a ¶ 20 (describing criminal alien who attempted murder after having been released).

The district court’s injunction also causes severe, ongoing irreparable harm to the government. Finding third countries willing and able to accept aliens is a delicate diplomatic endeavor. By interjecting itself in that process, and disrupting those carefully negotiated arrangements, the court’s actions have already caused major and irremediable “harm to U.S. foreign policy.” App., *infra*, 71a ¶ 3 (Rubio). Moreover, the injunction’s open-ended terms allow the court to continually move the goalposts as to what compliance entails, as illustrated by its recent “clarification” that its original command—to give aliens a “meaningful opportunity” to raise a CAT-based fear—in fact meant “a minimum of ten days.” *Id.* at 2a. Together, these “onerous and duplicative” burdens “significantly impede” the government’s ability to “effectively enforce immigration laws and remove dangerous criminals from the United States.” *Id.* at 67a-68a ¶¶ 28-30 (Rubio); see D. Ct. Doc. 131 (May 23, 2025) (Hegseth).

By contrast, respondents cannot establish offsetting irreparable harm. All members of the class have already been ordered removed, and all have already had the opportunity to raise fears under CAT. The injunction adds new hurdles to the already additional process DHS has decided to offer, in circumstances where valid concerns about torture are notably unlikely to arise—*i.e.*, removals to third countries where the aliens lack prior ties. Moreover, DHS’s policy is similar in timing to the expedited-removal process that this Court upheld against a due-process challenge in *Thuraissigiam*, and it amply guards against the removal of aliens to countries where they may face torture. The district court’s invented process offers little but delay. While certain aliens may benefit from stalling their removal, the Nation does not.

STATEMENT

A. Legal Background

1. The INA authorizes the removal of classes of aliens from the United States. 8 U.S.C. 1182, 1227. The removal process can include a hearing before an immigration judge, an appeal to the Board of Immigration Appeals, and review in a court of appeals. 8 U.S.C. 1229a, 1252. Many aliens facing removal have an opportunity to apply for relief or protection from removal. See, *e.g.*, 8 U.S.C. 1158 (asylum); 8 U.S.C. 1229b(a) (cancellation of removal); 8 U.S.C. 1229b(b) (adjustment of status).

Congress has established a streamlined process for removing aliens who, having previously been removed from the United States under a final order of removal, have reentered the country unlawfully. If DHS “finds that an alien has reentered the United States illegally after having been removed * * * under an order of removal, the prior order of removal is reinstated from its original date.” 8 U.S.C. 1231(a)(5); see *Nielsen v. Preap*, 586 U.S. 392, 397 n.2 (2019) (explaining Congress transferred enforcement of certain provisions from Attorney General to DHS Secretary). DHS may “at any time” effectuate removal “under the prior order.” 8 U.S.C. 1231(a)(5). The reinstated order “is not subject to being reopened or reviewed,” and the alien “is not eligible and may not apply for any relief” from that order. *Ibid.*

Congress has further established a process for the expedited removal of certain aliens, regardless of whether they have received a prior final order of removal. Expedited-removal procedures may be applied to defined categories of aliens who have not been admitted into the United States, including those who, lacking valid entry documents, are either arriving in the United States or unable to adequately show that they have been continuously present in the United States for the two years immediately prior. See, *e.g.*, 8 U.S.C. 1225(b)(1)(A)(i) and (iii). Under that expedited-

removal system, inadmissible aliens are entitled to speedy administrative review (typically within days) of any asserted fears of persecution in the country to which they will be removed; they are not entitled to judicial review of an adverse administrative determination. See *Thuraissigiam*, 591 U.S. at 109-113 (citing provisions).

2. In the INA, Congress has enacted provisions governing the determination of the country to which an alien is to be removed. See 8 U.S.C. 1231(b)(1) and (2); *Jama v. ICE*, 543 U.S. 335, 338-341 (2005). For certain aliens arriving in the United States (Section 1231(b)(1)) and then all other aliens (Section 1231(b)(2)), the statute establishes sequences of countries where an alien shall be removed, subject to certain disqualifying conditions (*e.g.*, the receiving country does not consent). For instance, under Section 1231(b)(2), possible countries of removal can include a country designated by the alien, the alien's country of citizenship, the alien's previous country of residence, the alien's country of birth, and the country from which the alien departed for the United States. See 8 U.S.C. 1231(b)(2). Importantly, under both Section 1231(b)(1) and (b)(2), Congress provided a fail-safe option in the event that other options do not work: An alien may be removed to any country willing and able to accept him. See 8 U.S.C. 1231(b)(1)(C)(iv) and (2)(E)(vii).

3. Congress has also provided means for an alien to challenge removal to a particular country where he may face persecution or torture. As relevant here, the alien may seek withholding or deferral of removal under regulations implementing the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT), *adopted* Dec. 10, 1984, S. Treaty Doc. No. 20, 100th Cong., 2d Sess. (1988), 1465 U.N.T.S. 85—a treaty that addresses the removal of aliens to countries where they would face torture. See Foreign Affairs Reform and Restructuring Act of 1998 (FARRA), Pub. L. No. 105-277, Div. G, § 2242(b), 112 Stat. 2681-822;

8 C.F.R. 208.31, 241.8(e). “Torture” is defined as an “extreme form of cruel and inhuman treatment,” which intentionally inflicts “severe pain or suffering” on another for an improper purpose, and is performed “at the instigation of or with the consent or acquiescence of a public official acting in an official capacity or other person acting in an official capacity.” 8 C.F.R. 208.18(a)(1) and (a)(2); see, e.g., *Del Carmen Amaya-De Sicaran v. Barr*, 979 F.3d 210, 218-219 (4th Cir. 2020) (torture is a “high bar”).²

CAT protection does not alter *whether* an alien may be removed; it affects only *where* an alien may be removed. That is, a grant of CAT protection “means only that, notwithstanding the order of removal, the noncitizen may not be removed to the designated country of removal, at least until conditions change in that country.” *Nasrallah v. Barr*, 590 U.S. 573, 582 (2020). The United States remains free to remove that alien “at any time to another country where he or she is not likely to be tortured.” *Ibid.* (citation omitted); see *INS v. Cardoza-Fonseca*, 480 U.S. 421, 428 n.6 (1987).

Ordinarily, an alien raises a CAT claim during removal proceedings under 8 U.S.C. 1229a, where the immigration court decides both the alien’s removability and CAT claim together. See, e.g., 8 C.F.R. 1240.1(a)(1)(iii), 1240.12(c); *Matter of I-S- & C-S-*, 24 I. & N. Dec. 432, 433-434 (BIA 2008). But sometimes, CAT claims arise outside of those removal proceedings. For instance, aliens subject to a reinstated order of removal—where the prior order of removal is restored—may nonetheless seek CAT protection in “withholding-only” proceedings. See *Johnson v. Guzman Chavez*, 594 U.S. 523, 530 (2021). Likewise, aliens placed in expedited-removal proceedings are still able to raise CAT claims, and receive administrative procedures,

² An alien may also seek “withholding of removal” under 8 U.S.C. 1231(b)(3), which prohibits the removal of an alien to a country where he would face persecution because of a protected trait. *Ibid.* This form of protection is not at issue in this application, because the district court limited its injunction to the procedures for raising CAT claims. See App., *infra*, 53a n.51.

the extent of which depends on the claim’s credibility. See, *e.g.*, 8 C.F.R. 235.3(b)(4).

An alien may seek judicial review of his CAT claim only under defined circumstances. Specifically, Congress directed that the “sole and exclusive means for judicial review of any cause or claim under [CAT]” must be “a petition for review filed with an appropriate court of appeals in accordance with [Section 1252].” 8 U.S.C. 1252(a)(4); see FARRA § 2242(d), 112 Stat. 2681-822 (same for “any other determination made with respect to the application of [CAT]”).

4. On his first day in office, President Trump declared that the millions of aliens who have illegally crossed the border pose a serious threat to national security. App., *infra*, 56a § 1. To combat this, the President directed DHS to take “all appropriate actions” to detain and remove aliens who had been ordered removed, but whom had still been “released into the United States.” *Id.* at 57a § 5.

Following this order, on February 18, DHS issued internal guidance that directed the Enforcement and Removal Operations directorate (ERO) of U.S. Immigration and Customs Enforcement (ICE) to review cases of aliens who had been ordered removed, but for whom CAT had impeded their actual removal. D. Ct. Doc. 1-4, at 2 (Mar. 23, 2025). DHS directed ERO to “determine the viability of removal to a third country” for such aliens, especially “in light of the Administration’s significant gains with regard to previously recalcitrant countries.” *Ibid.*

Third-country removals—again, removals to a country other than the ones designated on an alien’s order of removal—are often the only viable option for removing certain aliens. At times, the country (or countries) specified in an immigration judge’s removal order are no longer possible destinations by the time DHS is prepared to actually remove the alien. In other cases, an alien may obtain CAT protection from the only location listed on his removal order, either in his original proceedings or later

ones (as with reinstated orders). Thus, to effectuate a removal, the government often needs to send an alien to a country other than the ones specifically designated on his removal order. As a practical matter, that third country often falls within Section 1231(b)'s catch-all provisions for any country willing and able to accept the alien.

While the INA provides for third-country removals, it does not delineate a particular process for carrying out those removals. See 8 U.S.C. 1231(b). More specifically, Congress did not provide a particular process for ensuring that third-country removals remain consistent with the United States's obligations under CAT. Instead, it delegated to the Executive Branch the responsibility for developing such procedures. See 8 U.S.C. 1231 note (providing that the "heads of the appropriate agencies shall prescribe regulations to implement" the United States's CAT obligations).

On March 30, DHS issued guidance clarifying its "policy regarding the removal of aliens with final orders of removal pursuant to sections 240, 241(a)(5), or 238(b) of the [INA] to countries other than those designated for removal in those removal orders." App., *infra*, 54a-55a (March Guidance).³ The Guidance distinguishes between removals to countries that have provided credible assurances that any aliens removed there will not be tortured, and removals to those countries that have not done so.

For countries that have provided such an assurance, "the alien may be removed without the need for further procedures." App., *infra*, 54a-55a. For countries that have not, DHS must first inform the alien of removal to the country, and give him an opportunity to "affirmatively express a fear of persecution or torture" there. *Id.* at 55a. If he does so, an immigration officer will conduct a prompt screening to deter-

³ Section 240 corresponds with 8 U.S.C. 1229a ("Removal proceedings"); Section 241(a)(5) corresponds with 8 U.S.C. 1231(a)(5) ("Reinstatement of removal orders against aliens illegally reentering"); and Section 238(b) corresponds with 8 U.S.C. 1228(b) ("Removal of aliens who are not permanent residents").

mine whether he “would more likely than not be” tortured in the country of removal. *Ibid.* If the alien fails to satisfy this standard, he “will be removed.” *Ibid.* If he does satisfy it, he will be put into additional administrative procedures, consistent with how CAT claims are typically handled. See *ibid.* “Alternatively, ICE may choose to designate another country for removal,” and start the process afresh. *Ibid.*

B. Factual Background

1. Respondents are four illegal aliens subject to final orders of removal. See App., *infra*, 12a-14a (detailing respondents’ allegations). They each allege that there are “valid reasons to fear removal to specific countries that were not included in their removal orders.” *Id.* at 15a. Each respondent claims, among other things, that the government would violate due process if it does not provide sufficient “notice and an opportunity to be heard prior to removal to a country that was not designated in their removal orders.” *Ibid.* Soon after filing their complaint, respondents filed motions for class certification and a preliminary injunction. D. Ct. Docs. 4, 6 (Mar. 23, 2025). The same day, respondents moved for a temporary restraining order, D. Ct. Doc. 6, which the district court granted, D. Ct. Doc. 34 (Mar. 28, 2025). The First Circuit declined to stay the TRO, citing concerns over its appellate jurisdiction. See *D.V.D. v. DHS*, No. 25-1311, 2025 WL 1029774 (April 7, 2025).⁴

2. On April 18, the district court granted respondents’ motion for class certification, and granted in part their motion for a classwide preliminary injunction. The court first held that none of the INA’s jurisdictional bars applied to this case, including the bar on classwide injunctive relief restraining the removal of aliens.

⁴ Three of the four named respondents remain in the United States. One was removed to Mexico in February 2025 (and has since gone to Guatemala). The circumstances of his removal are subject to ongoing proceedings below. See, e.g., D. Ct. Doc. 132, at 13 (May 23, 2025) (ordering that the government “facilitate” his return).

App., *infra*, 16a-32a. Next, it certified a proposed class of aliens with final orders of removal. *Id.* at 28a-41a.⁵ Last, it granted injunctive relief based on respondents’ due-process challenge to the government’s third-country removal policy. *Id.* at 51a-53a.

In the injunction, the district court substantially revised the third-country removal policy that DHS had developed. Namely, the court ordered that DHS must (i) provide written notice to aliens (and any counsel) of the third country to which they might be removed; (ii) provide aliens with a “meaningful opportunity” to raise a fear of removal; (iii) use a “reasonable fear” rather than a “more likely than not” standard to assess the credibility of those assertions; and (iv) provide aliens with at least 15 days to “move to reopen immigration proceedings” in the event an alien failed to make this showing. App., *infra*, 51a-52a.

3. On May 16, the First Circuit denied the government’s request for an emergency stay in an unpublished order. The court expressed “concerns” regarding the government’s March Guidance, but also instructed the parties to brief on appeal a number of questions about the district court’s jurisdiction. App., *infra*, 4a-5a.

4. During this time, the district court intervened in efforts by DHS to remove aliens to third countries—sometimes without the benefit of governmental briefing as to the particular circumstances of removal. See, *e.g.*, D. Ct. Doc. 91 (May 7, 2025) (ordering DHS not to remove aliens to Libya or Saudi Arabia following only respondents’ motion for a temporary restraining order). Nevertheless, the govern-

⁵ The full class definition reads (App., *infra*, 28a):

All individuals who have a final removal order issued in proceedings under Section 240, 241(a)(5), or 238(b) of the INA (including withholding-only proceedings) whom DHS has deported or will deport on or after February 18, 2025, to a country (a) not previously designated as the country or alternative country of removal, and (b) not identified in writing in the prior proceedings as a country to which the individual would be removed.

ment developed an interim procedure to comply with the district court’s injunction, which would (among other things) provide aliens with “written notice of the country of removal in a language they understood,” have an ICE ERO officer “explain[] [that] written notice to [the alien],” and then generally give the alien at least twenty-four hours to “raise a fear of torture.” App., *infra*, 61a ¶¶ 7-8.

Following this procedure, on May 20, the government initiated the removal of a group of aliens on a military flight destined for South Sudan. All of these aliens were provided notice that they would be removed to South Sudan; none expressed a fear of being removed there. App., *infra*, 61a-62a ¶¶ 9-10; see *id.* at 62a ¶ 11 (“Based upon my nearly thirty years as an immigration officer at various levels, any alien who is being told that he or she is being removed to a third country would reasonably be expected to immediately notify ICE of any fear of removal to that third country and certainly within twenty-four hours.”).⁶

All of these aliens had committed heinous crimes in the United States, including murder, arson, armed robbery, kidnapping, sexual assault of a mentally handicapped woman, child rape, and more. See generally App., *infra*, 74a-82a (detailing offenses). But for various reasons, including that foreign countries are often reluctant to accept such dangerous criminals, the United States had been unable to remove these criminal aliens for years. See, e.g., *id.* at 65a ¶ 21. Moreover, because there are limitations on the ability of the United States to detain an alien pending removal, some of these aliens were previously forced to be released, notwithstanding their convictions and removal orders. *Id.* at 63a ¶ 18. Tragically but predictably, some aliens then committed further crimes in this country—such as one who was convicted of

⁶ One of the aliens initially set to be removed to South Sudan was redesignated for removal to his native country of Burma. See D. Ct. Doc. 125 (May 22, 2025).

attempted murder after his release. *Id.* at 64a ¶ 20.

Respondents sought emergency relief to halt the removal of these class member aliens to South Sudan. Following an emergency hearing that same day, the district court granted this request. D. Ct. Doc. 116 (May 20, 2025). The next day, on May 21, the court held the removal process violated its injunction, because the aliens were supposedly not given enough time to raise any CAT-based fear. App., *infra*, 1a-2a. The court purported to “clarify” its injunction, declaring that a “meaningful opportunity” for an alien to express a fear of removal in fact meant “a minimum of ten days.” *Id.* at 2a. As for the aliens in the process of being removed—who were (and are) being held at a military base in Djibouti—the court ordered the government must “maintain custody and control” over the aliens, D. Ct. Doc. 116, at 1, and ordered a series of remedial measures, D. Ct. Doc. 119 (May 21, 2025). Among them, the government must give each alien a reasonable fear interview “in private”; and ensure the alien has at least 72-hours’ notice of that interview, as well as resources to prepare for that interview “commensurate” with what he would have received in the United States. D. Ct. Doc. 119, at 1-2.⁷

ARGUMENT

To obtain a stay pending appellate proceedings, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors overwhelmingly support a stay of the injunction.

⁷ The government moved for reconsideration of the district court’s order finding that the government violated its injunction, as well as the court’s later clarifications of that injunction’s terms, but the district court denied the motion. See D. Ct. Doc. 130 (May 23, 2025); D. Ct. Doc. 135 (May 26, 2025).

I. THE GOVERNMENT IS LIKELY TO SUCCEED ON THE MERITS

Through the federal immigration laws, Congress vested the Executive Branch with broad authority over the removal of aliens, and narrowly circumscribed the authority of the Judiciary to superintend those functions. The injunction below inverts that distribution of power. It sets aside the chosen policy of DHS to effectuate third-country removals, replaces that policy with one of the district court's own making, and invites continued judicial micromanagement of such removals going forward.

That injunction exceeds the district court's lawful authority in numerous respects. To start, the injunction violates the plain terms of multiple jurisdictional bars. The INA strips district courts of jurisdiction (i) to issue classwide injunctive relief restraining the operation of third-country removals, (ii) to review claims challenging the government's process for complying with CAT, and (iii) to adjudicate suits arising from actions taken to execute removals. The district court's injunction does all three of these prohibited things, and its contrary conclusions read these jurisdictional bars so narrowly as to effectively write them out of the INA.

The district court's merits analysis was just as flawed. The March Guidance provides more than ample process—including, where appropriate, notice and an opportunity to be heard—to a class of aliens who have already been ordered removed and who have already had the chance to raise claims under CAT. The district court's decision to augment those procedures was policymaking, not law. The Constitution assigns the political branches preeminent (and at times, conclusive) authority over designing this Nation's immigration laws and deciding what process is due to those who violate them. And the intrusion here is all the more intolerable because it disrupts sensitive diplomatic, foreign-policy, and national-security initiatives that implicate the balancing of interests far beyond the district court's ken.

A. The District Court Lacked Jurisdiction

The district court issued a classwide injunction that prohibits DHS from removing aliens with final removal orders to third countries not previously identified, unless DHS complies with certain procedures adopted by the court. App., *infra*, 51a-52a. That injunction contravenes at least three separate sets of jurisdictional bars imposed by the INA and FARRA.

First, under 8 U.S.C. 1252(f)(1), lower federal courts lack jurisdiction to issue classwide injunctions that restrain the operation of third-country removals pursuant to 8 U.S.C. 1231(b). Second, under 8 U.S.C. 1252(a)(4) and Section 2242(d) of FARRA, district courts lack jurisdiction in particular to review claims challenging the government’s process for complying with CAT. Third, under 8 U.S.C. 1252(a)(5), (b)(9), and (g), district courts lack jurisdiction in general to adjudicate suits arising from actions taken to execute removals. Individually, each of those bars justifies a stay, and collectively, they make clear that a stay is warranted.

1. Section 242(f)(1) of the INA, codified at 8 U.S.C. 1252(f)(1), provides:

Regardless of the nature of the action or claim or of the identity of the party or parties bringing the action, no court (other than the Supreme Court) shall have jurisdiction or authority to enjoin or restrain the operation of the provisions of chapter 4 of title II, as amended by the Illegal Immigration Reform and Immigrant Responsibility Act of 1996, other than with respect to the application of such provisions to an individual alien against whom proceedings under such part have been initiated.

Pub. L. No. 104-208, Div. C, sec. 306(a)(2), § 242(f), 110 Stat. 3009-611 to 3009-612.

By its terms, that provision bars the lower federal courts from issuing any “classwide injunctive relief” that “order[s] federal officials to take or to refrain from taking actions to enforce, implement, or otherwise carry out the specified statutory provisions.”

Garland v. Aleman Gonzalez, 596 U.S. 543, 550-551 (2022) (citation omitted).

The district court’s injunction clearly violates 8 U.S.C. 1252(f)(1). It runs to “an entire class of aliens,” *Aleman Gonzalez*, 596 U.S. at 550-551, rather than an “individual alien,” 8 U.S.C. 1252(f)(1). And it concerns one of the covered statutory provisions: Section 1231(b)—which authorizes the Executive to remove aliens to third countries, when appropriate—is within the “provisions” covered by Section 1252(f)(1). See *Aleman Gonzalez*, 596 U.S. at 551 (holding injunction restraining the operation of Section 1231(a) was covered by Section 1252(f)(1)). There is also no doubt that the injunction below “restrain[s] the operation” of Section 1231(b). 8 U.S.C. 1252(f)(1). That was the whole point. The district court enjoined DHS from “removing any alien to a third country” until the mandated procedures are followed. App., *infra*, 51a-52a. That is, the court ordered the government to “refrain” from “carry[ing] out” its third-country removal authority under Section 1231(b) unless certain conditions are satisfied. *Aleman Gonzalez*, 596 U.S. at 550.

That is exactly the type of injunction that *Aleman Gonzalez* held that Section 1252(f)(1) forbids. There, as here, the district court enjoined the government class-wide from taking action under a specified provision (detaining aliens under Section 1231(a)(6)) until it provided additional process to those aliens (a bond hearing). *Aleman Gonzalez*, 596 U.S. at 547. This Court held that such an injunction was “barred” by Section 1252(f)(1), because an injunction that stops the government from implementing a statutory provision until certain conditions are satisfied is one that “enjoin[s] or restrain[s]” the operation of that provision. *Id.* at 551. The same reasoning applies here: The injunction below “‘enjoin[s] or restrain[s] the operation’ of [Section 1231(b)] because [it] require[s] officials to take actions that (in the Government’s view) are not required by [Section 1231(b)] and to refrain from actions that (again in the Government’s view) are allowed by [Section 1231(b)].” *Ibid.* It is the precise type

of injunction that cannot run to an entire class of aliens under Section 1252(f)(1).

Notwithstanding this Court’s holding in *Aleman Gonzalez*, the district court held that Section 1252(f)(1) “simply does not apply.” App., *infra*, 29a. It observed that respondents’ claim “concerning the availability of CAT protection” is “based on” FARRA, which is “a different statute” outside of the provisions covered by Section 1252(f)(1). *Id.* at 29a-30a. At most, the court reasoned, the injunction has a mere “collateral[]” effect on “covered parts of the INA.” *Id.* at 30a.

The district court’s rationale rests on a fundamental error. It conflates *why* a particular action is alleged to be unlawful with *whether* that is a category of action shielded from classwide relief under Section 1252(f)(1). For purposes of Section 1252(f)(1), all that matters is whether the action that the injunction restrains is taken to enforce or implement one of the covered statutory provisions (*i.e.*, those “governing the inspection, apprehension, examination, and removal of aliens”). *Aleman Gonzalez*, 596 U.S. at 549-550. It does not matter whether that action is in fact “what the statute allows or commands.” *Id.* at 552. And it does not matter whether that action violates some external legal limit, be it “constitutional” or “statutory.” *Id.* at 553-554 and n.4. So long as the governmental conduct at issue is taken pursuant to a covered provision, Section 1252(f)(1) bars classwide injunctive relief to stop it. *Id.* at 554-555. So here, classwide relief restraining DHS’s operation of third-country removals pursuant to Section 1231(b) is barred, notwithstanding that respondents’ claims are “based on a different statute” than Section 1231(b). App., *infra*, 24a.

Likewise, the injunction’s “impact” on DHS’s operations pursuant to Section 1231(b) is far more than “collateral[].” App., *infra*, 30a. This is nothing like cases where an injunction restrains the “operation of a provision *that is not specified in* § 1252(f)(1),” which then has a downstream “collateral effect on the operation of a

covered provision.” *Aleman Gonzalez*, 596 U.S. at 553 n.4. Rather, the injunction itself bears directly on Section 1231(b), and expressly restrains DHS’s operation of third-country removals under that specified provision.

In short, by enjoining DHS from “removing any alien to a third country” under Section 1231(b) unless it follows certain procedures, App., *infra*, 51a-52a, the district court entered an order that, by design and intent, “interfere[s] with the Government’s efforts to operate” Section 1231(b), *Aleman Gonzalez*, 596 U.S. at 551. And because that injunction awards relief on a classwide basis, it is barred by Section 1252(f)(1). That inescapable conclusion alone warrants a stay of the injunction here.

2. In addition, the district court’s injunction violates the CAT-specific bars in the INA and FARRA. The INA provides that “a petition for review filed with an appropriate court of appeals * * * shall be the sole and exclusive means for judicial review of any cause or claim under [CAT].” 8 U.S.C. 1252(a)(4). Likewise, FARRA confirms that “no court shall have jurisdiction to review * * * any * * * determination made with respect to the application of [CAT] * * * except as part of the review of a final order of removal.” § 2242(d), 112 Stat. 2681-822; see 8 C.F.R. 208.18(e). FARRA also bars judicial review of the “regulations adopted to implement [CAT],” and assigns to the Executive alone the duty to design procedures to “implement the obligations of the United States” under that treaty. § 2242(d), 112 Stat. 2681-822.

The injunction runs afoul of these limits. Respondents’ suit—which challenges DHS’s existing procedures for certain CAT claims—both concerns the “application” of CAT, and is a “cause or claim under [CAT].” See App., *infra*, 29a (recognizing the “class-wide injunctive relief Plaintiffs seek” is “based on” FARRA). And there is no doubt that this action arises outside of a petition for review from a final order of re-

moval. Thus, the district court lacked jurisdiction: The sorts of claims raised here can only be reviewed, if at all, in an appellate court through a petition for review.

For its part, the district court largely ignored FARRA. See App., *infra*, 23a-24a. It never explained how it had authority to issue an injunction regarding the “application” of CAT here. § 2242(d), 112 Stat. 2681-822. Nor did it try to justify how it had “jurisdiction to review” the procedures that the Executive Branch has adopted to “implement” CAT. *Ibid.* By definition, in augmenting the procedures that the Executive Branch has crafted for CAT claims in this context, the district court “review[ed]”—and held inadequate—those that the Executive “implemented.” *Ibid.*

As for Section 1252(a)(4), the district court held the provision applies only to matters that could have been raised in a petition for review of a final order of removal. App., *infra*, 23a. And because respondents’ CAT objections arose *after* the final removal order was issued, the court reasoned they fell outside Section 1252(a)(4). *Ibid.*

That rationale is flawed at multiple levels. To start, the premise is wrong: CAT claims like those here *can* be raised in the administrative process. See p. 27, *infra*. But more fundamentally, the conclusion does not follow. Section 1252(a)(4) identifies a type of action—“any cause or claim under [CAT]”—and specifies the “sole and exclusive” way that such a claim can be reviewed in court: a petition for review filed in a court of appeals. To the extent an action does not fit within that means for review, the result is that judicial review is not available. That is the nature of exclusive review. See, e.g., *United States v. Fausto*, 484 U.S. 439, 454-455 (1988) (holding that the comprehensive framework of the CSRA precluded review of certain claims). And that holds particular force in the context of CAT, which is a non-self-executing treaty that Congress implemented through FARRA, by giving the Executive broad discretion over setting its procedures. See § 2242(b) and (d), 112 Stat. 2681-822.

Concluding otherwise, the district court invoked this Court’s decision in *Jennings v. Rodriguez* to argue that the INA’s channeling provisions “cannot be read to strip jurisdiction over claims that could not have been raised in the removal proceedings.” App., *infra*, 24a, 17a-18a (citing 583 U.S. 281, 293 (2018)). But *Jennings* did not adopt such a categorical rule. Instead, the Court read a specific statutory term narrowly (“arising from”) to limit the reach of a different jurisdiction-stripping provision. 583 U.S. at 293 (interpreting 8 U.S.C. 1252(b)(9)). There is a world of difference between adopting the narrower reading of an open-ended phrase, and ignoring the plain text of a limitation entirely. The latter is what the district court did here. When Congress specifies the “sole and exclusive” means for judicial review over a claim, there is only one way for the federal courts to review that claim. Anything more involves amending the statute, not interpreting it.

3. On top of those jurisdictional bars, the injunction also violates the INA’s provisions that prohibit district courts from exercising jurisdiction over suits challenging actions taken to execute removal orders. Congress has stripped district courts of jurisdiction over “any cause or claim by or on behalf of any alien arising from the decision or action * * * to commence proceedings, adjudicate cases, or execute removal orders.” 8 U.S.C. 1252(g). Instead, such claims—along with any other “questions of law and fact * * * arising from any action taken or proceeding brought to remove an alien”—must be brought as part of a petition for review of a “final order” of removal. 8 U.S.C. 1252(b)(9). And that petition, again, is the “sole and exclusive means for judicial review” of such claims. 8 U.S.C. 1252(a)(5).

Together, these provisions strictly limit judicial review over certain “stages in the deportation process.” *Reno v. American-Arab Anti-Discrimination Committee*, 525 U.S. 471, 483-484 (1999). One such stage is the *execution* of a removal order.

Ibid. If an alien wishes to challenge that discrete act in court, his sole and exclusive means of doing so is a petition for review; if that means is unavailable, then nothing in the INA “provides for jurisdiction” for the federal courts to intervene. *Id.* at 487.

Once more, that principle precludes the injunction below. Respondents’ claims arise *entirely* from actions taken to “execute removal orders,” 8 U.S.C. 1252(g)—namely, to remove respondents to third countries without the additional process demanded by the district court—and thus those claims “fall[] squarely within” the INA’s jurisdictional bar, *AADC*, 525 U.S. at 487. The district court lacked the authority to enjoin the government from removing respondents to third countries without additional process—*i.e.*, from executing those aliens’ removal orders in a particular way.

Once more, the district court’s attempts to avoid these jurisdictional bars fail. As for Section 1252(g), the court read that bar to cover “only discretionary decisions.” App., *infra*, 26a-28a. And it held the actions here were thus not covered, because the government lacks discretion to remove an alien contrary to law. *Ibid.*

That misreads Section 1252(g). Nothing in that provision’s text is limited to acts of “discretion”—which Congress knows how to do. See, *e.g.*, 8 U.S.C. 1226(e) (“The [DHS Secretary’s] discretionary judgment regarding the application of this section shall not be subject to review.”). Rather, the text reaches “*any* cause or claim * * * arising from the decision *or* action by the [DHS Secretary] to commence proceedings, adjudicate cases, or execute removal orders.” 8 U.S.C. 1252(g) (emphases added). To be sure, those actions often involve “discretion” on the part of the Executive Branch, and Congress sought to protect that discretion from judicial review. *AADC*, 525 U.S. at 486. But nothing in Section 1252(g) limits protection to *only* the discretionary aspects of the specified actions; rather, its text reaches “any” “action” taken to “execute removal orders.” See, *e.g.*, *E.F.L. v. Prim*, 986 F.3d 959, 965 (7th

Cir. 2021) (rejecting view that Section 1252(g) is limited to “discretionary decisions”).

Moreover, Congress had good reason to sweep more broadly. A jurisdictional bar that turns on the merits of the underlying action is no bar at all. See *Aleman Gonzalez*, 596 U.S. at 554. Nor would it do much for Section 1252(g)’s goal of curbing the “prolongation of removal proceedings.” *AADC*, 525 U.S. at 487. Instead, the straightforward reading of Section 1252(g) is the more sensible one: If a claim challenges the execution of a removal order, it must be brought via a petition for review.

Compounding the error, the district court dismissed Sections 1252(a)(5) and (b)(9) on the ground that they only cover actions that “could have been raised in [an alien’s] removal proceedings.” App., *infra*, 18a. And because respondents’ objections to third-country removal arose after their final removal orders were entered, the court reasoned that they were not barred.

That reasoning, however, fares no better than it did under the CAT-specific bars. Again, when a statutory scheme creates an exclusive mechanism for reviewing a type of grievance, the fact that a subset of those claims cannot satisfy that mechanism is not a license for a federal court to create another one. Here too, the district court relied heavily on its misunderstanding of *Jennings*. But again, there, this Court declined to interpret Section 1252(b)(9) so broadly as to cover *categories* of claims that either had nothing to do with removal (*e.g.*, assault) or could never be “effectively” reviewable in any form (*e.g.*, prolonged detention). 583 U.S. at 293. None of that bears on the allegations here, which inescapably—indeed, exclusively—target an “action taken * * * to remove an alien from the United States.” 8 U.S.C. 1252(b)(9).

Tellingly, the district court never attempted to square its ruling with the actual text of the INA. Nowhere did it say how a suit seeking to impose conditions on third-country removals does not challenge an “action” to “execute removal.” 8 U.S.C.

1252(g). Nor did it explain how a case objecting to the process for third-country removals was not one “arising from” “action[s] taken” to “remove an alien.” 8 U.S.C. 1252(b)(9). Its sole response was to insist that these sorts of claims *must* be reviewable at some point, by some court—and working from that premise, the district court held that those jurisdictional bars did not control, because they could not apply.

That is no way to read a statute. Indeed, that logic undermines the whole point of jurisdictional bars, which is, after all, to create at least some situations where judicial review is actually barred. And it is especially misguided here, because many aliens *can* raise CAT objections to third-country removals in the administrative process—and, in turn, before a court of appeals. On the front end, aliens can raise in their initial removal proceedings the list of countries where they fear removal. See U.S. Citizenship & Immigration Servs., DHS, *Form I-589: Application for Asylum and for Withholding of Removal* 6 (Jan. 20, 2025) (asking alien to list and explain “any” country “to which [he] may be returned” where he fears “torture”); see also 8 C.F.R. 1240.10(f), 1240.11(c). And on the back end, aliens can move to reopen proceedings to assert new fear claims regarding removal to a third country. See, e.g., 8 U.S.C. 1229a(c)(7) (allowing a motion to reopen within 90 days after removal order becomes administratively final); 8 C.F.R. 1003.2(c), 1003.23(b) (allowing a motion to reopen after 90 days under immigration court or BIA’s *sua sponte* authority).

The district court found those options inadequate. App., *infra*, 19a-23a. It maintained, for instance, that forcing an alien to affirmatively list where he might “have a reasonable fear” would be “impractical.” *Id.* at 45a. But that, at bottom, is a policy objection to the scheme Congress designed. And it is a weak one at that. There is little to recommend a system where the government is forced to go country-by-country until the alien acquiesces to removal without further, lengthy process. See

id. at 65a ¶¶ 22-23 (detailing “time consuming” and “operationally burdensome” process of finding viable third countries for removal). Nor is it unreasonable to place the burden on the alien to proactively identify where he fears he may be “tortured,” as defined under CAT. CAT protection is an extraordinary remedy reserved for the “extreme” scenario when an alien faces a specific threat of severe pain or suffering intentionally inflicted by the hand or with the concurrence of a *government official* in the receiving country. See p. 11, *supra*. It does not, as the district court seemed to suggest, extend to whenever an alien is removed to a country with a high crime rate, civil unrest, or other risk of private violence. See App., *infra*, 1a. Given that demanding standard, it is far from unreasonable to expect that an alien with a bona fide CAT claim will be able to say the countries where he faces a genuine threat of torture—especially aliens like the class members, who have already “gone through a removal process” and would have been “advised” as to the scope of CAT. *Id.* at 62a ¶ 12.

B. Respondents’ Due-Process Claims Are Meritless

Even setting aside the injunction’s many jurisdictional defects, it also fails on the merits. The government’s procedures for implementing CAT in this context are fully consistent with due process, and the district court had no legal basis to order that those procedures be supplemented with ones it preferred.

Notably, all class members here have final orders of removal. All have had the opportunity to raise CAT claims in prior proceedings, voice fears as to any potential countries of removal, and move to reopen past proceedings as new fears have arisen.

The March Guidance explains that the government provides these aliens with additional process, before any one of them is removed to a third country. That process, as detailed below, ensures that an alien will either be sent to a country where the United States has received adequate assurance the alien will not be tortured, or

that the alien will be given notice and an opportunity to be heard regarding any fear as to his country of removal. The district court erred in second-guessing the details of these procedures under the guise of constitutional due-process analysis.

1. As noted, the March Guidance provides that an alien may be removed to a “country [that] has provided diplomatic assurances that aliens removed from the United States will not be persecuted or tortured.” App., *infra*, 54a. If the State Department finds that country’s assurances credible, “the alien may be removed without the need for further procedures.” *Id.* at 54a-55a.

The Constitution requires nothing further. Indeed, this Court has already held that when the Executive determines a country will not torture a person on his removal, that is conclusive. *Munaf v. Geren*, 553 U.S. 674, 702-703 (2008); see *Kiyemba v. Obama*, 561 F.3d 509, 514 (D.C. Cir. 2009) (federal courts “may not question the Government’s determination that a potential recipient country is not likely to torture a detainee”), cert. denied, 559 U.S. 1005 (2010). The “*Munaf* decision applies here a fortiori: That case involved transfer of *American citizens*, whereas this case involves transfer of alien detainees with no constitutional or statutory right to enter the United States.” *Kiyemba*, 561 F.3d at 517-518 (Kavanaugh, J., concurring). When the Executive decides an alien will not be tortured abroad, courts may not “second-guess [that] assessment,” at least unless Congress has specifically authorized judicial review of that decision. *Id.* at 517 (citation omitted); see *Munaf*, 553 U.S. at 703 n.6.

The district court disagreed, but gave no sound reason for doing so. It mainly insisted that the Executive Branch must make an “individualized assessment” to satisfy due process. App., *infra*, 47a. But courts may not “second-guess” the *scope* of the Executive’s conclusion any more than its substance. See *Kiyemba*, 561 F.3d at 517-518 (Kavanaugh, J., concurring). The decision that a foreign government’s categorical

assurance against torture is sufficient to be accepted for all aliens is itself a “foreign policy” judgment the Judiciary “is not suited” to question. *Munaf*, 553 U.S. at 702.⁸

Relatedly, the district court’s objection does not sound in *procedural* due process at all. It is a *substantive* objection that an assurance alone provides insufficient basis for the government to find that an alien is not likely to be tortured. This Court has rejected attempts to “recast in ‘procedural due process’ terms” what is really a challenge to the “‘substantive’” criteria that the government has adopted. *Reno v. Flores*, 507 U.S. 292, 308 (1993) (rejecting similar argument for “individual[ized]” procedure). For good reason: It makes no sense to require the government to provide additional process with respect to potential evidence that is *immaterial* under the substantive standard the government has adopted. When the government is satisfied based on foreign assurances that *no* alien will be tortured in the receiving country, a further “individualized” assessment serves no rational purpose.

The district court also held that the March Guidance was insufficient because it did not provide for judicial review before removal. App., *infra*, 48a. But that too is irreconcilable with *Munaf*’s recognition that certain determinations by the political branches are conclusive in this context. Moreover, the district court never explained why judicial review would be required here, but not for the many other provisions in the INA that make the Executive’s decisions conclusive and unreviewable. See, e.g., *AADC*, 525 U.S. at 486-487 (collecting examples); cf. 8 C.F.R. 1208.30(g)(2)(iv)(A)

⁸ The district court also stated that an individualized determination was required under CAT regulations. App., *infra*, 47a-48a. Of course, that has no bearing on what the *Constitution* might require. Anyway, the court was wrong. While the regulations say that an assurance must be limited to a “specific country,” nothing requires an alien-by-alien determination as to what will likely happen in that country. 8 C.F.R. 1208.18(c)(1). The Secretary is free to conclude that “an alien” would not be tortured upon removal, on the ground that *no alien* would be treated that way in light of the strength and reliability of the assurance provided by that country. *Ibid*.

(barring judicial review over adverse fear determination in expedited-removal proceedings). The court just cited *Marbury* for the notion that every right must have a remedy. But it never provided a coherent legal rationale why a *judicial* remedy is necessary in these circumstances, yet not elsewhere across the INA where an *administrative* remedy is sufficient. See *Haaland v. Brackeen*, 599 U.S. 255, 279 (2023).

2. For aliens being removed to a third country not covered by an adequate assurance, the March Guidance states that DHS will first inform the alien of removal to that country, and then give him an opportunity to affirmatively state that he fears removal there. App., *infra*, 55a. If the alien does so, immigration officials will generally screen the alien within 24 hours to determine whether he “would more likely than not” be tortured if sent to that country. *Ibid.* If not, the alien will be removed; if so, the alien will be placed in further administrative proceedings—or if appropriate, the government “may choose to designate another country for removal.” *Ibid.*

The district court deemed those procedures unconstitutional too. According to the court, the Constitution requires (i) not just that an alien be given a “meaningful opportunity” to simply express a fear of return, but that he be given a “minimum of ten days” to do so; (ii) the government must use a “reasonable fear” standard, rather than a “more likely than not” standard, in evaluating that asserted fear; and (iii) an alien must have “a minimum of 15 days” to “move to reopen” immigration proceedings if he fails to establish a reasonable fear. App., *infra*, 51a-52a, 1a-2a.

The district court offered no basis in law for those supposed constitutional dictates. To the contrary, they are inconsistent with established immigration law. Most analogous, in expedited-removal proceedings, aliens are expected to raise fears of removal “almost immediately,” and are often processed in a matter of hours. App., *infra*, 62a ¶¶ 11, 13; see, e.g., 8 U.S.C. 1225(b)(1)(B)(i). If the asylum officer decides the

alien does not have a credible fear, any review by an immigration judge must be completed within seven days after that finding was made. 8 U.S.C. 1225(b)(1)(B)(iii)(III); 8 C.F.R. 1003.42(e). The expedited-removal statute does not limit the countries to which an alien can be removed pursuant to Section 1231(b), see 8 U.S.C. 1225(b), so its expedited procedures for raising and assessing fear claims apply even when an alien is removed somewhere other than his home country, see, *e.g.*, 8 U.S.C. 1231(b)(1)(A)-(C) (listing alien’s country of birth or citizenry as alternatives only where removal to the country from which the alien arrived is unavailable).

The district court did not explain why those sorts of procedures are adequate for expedited removal, but not here—where, again, the entire class comprises aliens who already have valid removal orders, and who already have had a prior opportunity to raise claims under CAT. The court underscored that the additional measures it imposed tracked its “sense of what fairness requires,” App., *infra*, 51a n.46; but that is an improper basis to displace DHS’s judgment about the best way to carry out the core executive power of removing aliens consistent with our treaty obligations.

Nor does the district court’s preferred policy even make sense on its own terms. The injunction requires that *all* class members receive at least 15 days to move to reopen proceedings after an adverse “reasonable fear” finding. App., *infra*, 52a. But when the government makes a decision to accept an *individualized* assurance from a foreign nation that an alien would not be tortured upon removal—as even the district court acknowledged was permissible, see *id.* at 47a-48a—that determination is conclusive for the Executive Branch. See 8 C.F.R. 208.18(c). Yet if the government opts to take that course as to a particular alien, the court’s injunction *still* requires two-plus weeks for that alien to file a futile motion to reopen. While aliens in that position may welcome the manufactured delay, such judicial policymaking only further bur-

dens an immigration system already plagued by protraction.⁹

3. The district court’s creation of novel due-process requirements is particularly misguided here because, for many aliens included in the class, the Due Process Clause requires no more process than what the political branches provide. This Court has long held that “the due process rights of an alien seeking initial entry” are no greater than “[w]hatever the procedure[s] authorized by Congress.” *Thuraissigiam*, 591 U.S. at 139 (citation omitted). For aliens who have never been admitted—a group which undoubtedly includes many class members here—“the decisions of executive or administrative officers, acting within powers expressly conferred by Congress, *are* due process of law.” *Nishimura Ekiu v. United States*, 142 U.S. 651, 660 (1892) (emphasis added); accord *Thuraissigiam*, 591 U.S. at 138-140.

To this end, this Court has also long applied the so-called “entry fiction” that all “aliens who arrive at ports of entry * * * are treated for due process purposes as if stopped at the border.” *Thuraissigiam*, 591 U.S. at 139 (citation omitted). Indeed, that is so “even [for] those paroled elsewhere in the country for years pending removal.” *Ibid.* This Court has applied the entry fiction to aliens with highly sympathetic claims to having “entered” and developed significant ties to this country. See, e.g., *Kaplan v. Tod*, 267 U.S. 228, 230 (1925) (holding that a mentally disabled girl paroled into the care of relatives for nine years must be “regarded as stopped at the boundary line” and “had gained no foothold in the United States”); *Shaughnessy v. United States ex rel. Mezei*, 345 U.S. 206, 214-215 (1953) (holding that an alien with 25 years’ of lawful presence who sought to reenter enjoyed “no additional rights” be-

⁹ In its analysis, the district court emphasized a stray comment from oral argument, taken out of context, where an attorney indicated the government would send an alien to any country it did not know “there’s someone standing there waiting to shoot him.” App., *infra*, 49a. As detailed here, that is not DHS’s policy in any way.

yond those granted by “legislative grace”). Compared to these cases, it follows *a fortiori* that an unlawful entrant who violates our laws and evades detection must, once found, be “treated as if stopped at the border.” *Mezei*, 345 U.S. at 215.

Accordingly, this Court’s precedents indicate that illegal aliens who evade detection in crossing the border should be treated the same as those who are stopped at the border in the first place. See *Thuraissigiam*, 591 U.S. at 138-140. While aliens who have been *admitted* may claim due-process protections beyond what Congress has provided, even when their legal status changes (*e.g.*, an alien who overstays a visa, or is later determined to have been admitted in error), see *Wong Yang Sung v. McGrath*, 339 U.S. 33, 49-50 (1950), this Court has never held that aliens who have “entered the country clandestinely” are entitled to such additional rights, *The Japanese Immigrant Case*, 189 U.S. 86, 100 (1903). Put differently, “once an alien gains admission to our country and begins to develop the ties that go with permanent residence”—a status that, by definition, unlawful entrants are legally barred from obtaining—“his constitutional status changes accordingly.” *Landon v. Plasencia*, 459 U.S. 21, 32 (1982). But before then, an alien who clandestinely enters “does not become one of the people to whom these things are secured by our Constitution by an attempt to enter, forbidden by law.” *United States ex rel. Turner v. Williams*, 194 U.S. 279, 292 (1904); accord *Wong Yang Sung*, 339 U.S. at 49-50.

Congress has codified that distinction by treating all aliens who have not been admitted—including unlawful entrants who evade detection for years—as “applicants for admission.” 8 U.S.C. 1225(a)(1) (“An alien present in the United States who has not been admitted * * * shall be deemed for purposes of [the INA] an applicant for admission.”). That rule comports with the Constitution. The Due Process Clause does not offer a windfall for those who successfully circumvent our laws and evade

detection. For constitutional purposes, it should not matter whether an alien was apprehended “25 yards into U.S. territory” or 25 miles; nor should it matter whether he was here unlawfully and evades detection for 25 minutes or 25 years. See *Thuraisigiam*, 591 U.S. at 139. When an illegal alien has never been admitted to this country by immigration officers, his constitutional status for due-process objections to removal is no different from an alien stopped at the border.¹⁰

That principle is fatal to the classwide relief granted below. The class covers “[a]ll individuals who have a final order of removal issued in proceedings under Section 240, 241(a)(5), or 238(b) of the INA.” App., *infra*, 28a. That includes aliens who were apprehended at the border reentering after having been removed. It includes aliens deemed inadmissible at the border but then released into the country for removal proceedings. And it includes aliens who were able to clandestinely enter the country illegally, only to be apprehended later.

The Due Process Clause does not give such aliens a constitutional entitlement

¹⁰ This conclusion is consistent with this Court’s recent rulings that aliens detained and subject to removal under the Alien Enemies Act (AEA), 50 U.S.C. 21 *et seq.*, are entitled to judicial review, including notice and opportunity to be heard regarding their AEA status. *Trump v. J.G.G.*, 145 S. Ct. 1003, 1006 (2025) (per curiam); *A.A.R.P. v. Trump*, No. 24A1007, 2025 WL 1417281, at *2 (May 16, 2025) (per curiam). As noted in the government’s application in *J.G.G.*, Gov’t Br. at 18-20, *Trump v. J.G.G.*, 145 S. Ct. 1003 (2025) (No. 24A931), this Court in *Ludecke v. Watkins*, 335 U.S. 160 (1948), interpreted the AEA and the habeas corpus statute to provide for limited but significant judicial review of the Executive’s AEA determinations, including review of “questions of interpretation and constitutionality,” *id.* at 163, and “[t]he additional question as to whether the person restrained is in fact an alien enemy,” *id.* at 171 n.17. In those cases, therefore, Congress has *provided* procedures by statute that comport with due process, and they apply regardless of whether the AEA-designated alien is an applicant for admission who lacks due-process removal rights beyond what Congress provides. Here, by contrast, the district court created an entirely new process without any statutory basis, based on its subjective “sense of what fairness requires”; superimposed that process upon the more limited (but still constitutionally adequate) procedures adopted by the political branches; and then applied that judge-manufactured process to many aliens who lack due-process removal rights beyond what Congress provides. See App., *infra*, 51a-52a and n.46.

to any extra removal procedures beyond what the political branches have provided. See *Thuraissigiam*, 591 U.S. at 138-140. But that is precisely what the district court’s injunction does. Again, the INA is silent as to any specific process that aliens must be afforded under CAT before they are removed to a third country, and FARRA delegates that decision to the Executive Branch. See 8 U.S.C. 1231 note. The March Guidance thus constitutes the political branches’ reasoned judgment as to what that process should be in these circumstances, for aliens who have a final order of removal. For aliens who were never admitted to the United States, the Executive’s policies and decisions made under FARRA “are due process of law.” *Nishimura Ekiu*, 142 U.S. at 660 (emphasis added). And as detailed, far from some exercise of “arbitrary power,” *Japanese Immigrant*, 189 U.S. at 101, that Guidance is exceedingly reasonable, and provides aliens with more than ample process to effectuate their responsible removal. The Constitution requires nothing further.

II. THE OTHER FACTORS SUPPORT RELIEF

Besides the merits, in deciding whether to grant emergency relief, this Court also considers whether the underlying issues warrant review; whether the applicants likely face irreparable harm; and in close cases, the balance of equities. See *Hollingsworth*, 558 U.S. at 190. Those factors all overwhelmingly support relief here.

1. The issues raised by this case warrant this Court’s review. The district court’s injunction interferes with the implementation of an important Executive Order, in an area that Congress and the Constitution have entrusted to the Executive Branch. This Court has recently and repeatedly intervened in similar cases. See, e.g., *Trump v. Wilcox*, No. 24A966, 2025 WL 1464804 (May 22, 2025); *Noem v. National TPS Alliance*, No. 24A1059, 2025 WL 1427560 (May 19, 2025); *Trump v. Sierra Club*, 140 S. Ct. 1 (2019) (granting stay of district court order enjoining the Depart-

ment of Defense from undertaking border-wall construction using certain funds); *INS v. Legalization Assistance Project*, 510 U.S. 1301, 1305-1306 (1993) (O'Connor, J., in chambers) (granting stay of district court order that required INS to engage in certain immigration procedures, as “an improper intrusion” upon a “coordinate branch”).

The same course is merited here. President Trump has determined that the millions of illegal aliens who have been released back into the United States, notwithstanding a valid order of removal, present an immediate threat to the nation. App., *infra*, 57a § 5. To combat this, the Administration has engaged in an “unprecedented” effort to work with foreign countries to facilitate the removal of illegal aliens. D. Ct. Doc. 1-4, at 2. And in turn, DHS has developed a policy for such third-country removals, which was designed to strike a balance for the government between providing adequate process while ensuring long overdue expedition in removals. The district court’s order blocking that critical policy warrants this Court’s attention.

2. All the more so because the government will suffer severe irreparable harm absent prompt action by this Court. Of course, whenever a government’s policy is blocked by court order, it suffers an irreparable sovereign harm. *Maryland v. King*, 567 U.S. 1301, 1303 (2012) (Roberts, C.J., in chambers). And that harm is even more acute in the immigration context, where the Constitution assigns preeminent power to the political branches. See *Galvan v. Press*, 347 U.S. 522, 531 (1954).

Those harms are particularly pronounced in this case. While the Constitution envisions that “the Government’s political departments [will be] largely immune from judicial control” in the immigration sphere, *Fiallo v. Bell*, 430 U.S. 787, 792 (1977) (citation omitted), the district court’s injunction portends the opposite, with that court generally superintending third-country removals so long as its injunction is in effect. As the episode with South Sudan confirms, the injunction’s open-ended terms allow

the district court to continually revise its invented removal policy. See App., *infra*, 2a (purporting to “clarify” that “meaningful opportunity” means at least “ten days”). And indeed, the court has indicated that further revisions are to come—with those details fleshed out over the course of “experience,” which in practice could only mean seriatim contempt hearings. *Id.* at 1a-2a. That is unworkable. It was problematic enough for the court to write its own procedures, but it is simply untenable for that project to be a work-in-progress in which the goalposts continuously move.

The practical consequences of the district court’s injunction only underscore why the Constitution assigns immigration policy to the political branches. As noted, the court’s policy allows for at least 25-days’ worth of delay for every alien being removed to a third country who decides to voice a fear under CAT—regardless of how frivolous his claim. Because ICE “often has only a short window to remove an alien”—including because travel documents are not “valid indefinitely”—this unfounded delay can scuttle an alien’s “entire” removal process, forcing ICE to start anew. App., *infra*, 68a ¶ 29. And because ICE has both limited legal authority and practical ability to detain aliens, the result may be that ICE must “release these dangerous criminals once again” while it restarts removal. *Ibid.* Those operational burdens from the injunction will weigh heavily on an already strained immigration system.

Worse, the injunction has harmed—and will harm—American foreign policy and national security, as Secretaries Rubio and Hegseth explained below. Arranging removal to a third country is a delicate diplomatic endeavor, which is the product of a carefully negotiated process. See App., *infra*, 71a ¶ 4 (Rubio) (describing diplomatic consequences of disrupting possible removals to Libya). When a court upends those efforts, it visits “significant and irreparable harm to U.S. foreign policy.” *Id.* at 71a ¶ 3. And that is exactly what happened here. By interrupting the transfer of

aliens to South Sudan, the district court’s injunction “derail[ed]” our efforts to “quietly rebuild a productive working relationship” with that country, and to gain South Sudan’s “cooperation” in broader regional priorities. *Id.* at 72a ¶ 5. Of a piece, in causing the United States to keep criminal aliens at its military base in Djibouti, the district court forced the United States to “re-engage the Djiboutians to explain that the mission they had approved had subsequently changed” in important respects. *Id.* at 72a ¶ 7. Such actions have serious repercussions for American foreign policy, given Djibouti’s “strategic[] locat[ion] in the Horn of Africa.” *Id.* at 72a ¶ 6. So too national security, because the sudden need for the government to detain criminal aliens in Djibouti has forced the United States to divert critical resources from elsewhere, and has more broadly undermined the Department of Defense’s relationship with that host nation. See generally D. Ct. Doc. 131 (Hegseth).

Nor are these severe costs in service of any public benefit. As noted, the United States relies on third countries to facilitate the removal of criminal aliens who are difficult to otherwise remove. Absent an effective third-country removal policy, the United States is forced to retain (and often, release) vicious criminals who have already harmed our communities. The aliens sent to South Sudan—a group of convicted sex offenders and murderers, among others—are illustrative of a broader problem. The March Guidance marks a long overdue solution, and the public is not served by an order that hollows its efficacy. See *Nken v. Holder*, 556 U.S. 418, 436 (2009) (recognizing the “public interest in prompt execution of removal orders”).

On the other side of the ledger, respondents have not established irreparable harm that warrants extraordinary relief. The Secretary of State already has the authority to obtain “assurances” from a foreign country that an alien will not be tortured if removed there, and those assurances are already dispositive with regard to CAT

protection. 8 C.F.R. 208.18(c). Neither the district court nor respondents have identified any sort of imminent or irreparable harm from the government’s ability to obtain these assurances categorically versus one-by-one. Nor could they: Because either decision would rest on the same basis (*i.e.*, that *no* alien will be tortured), any requirement for an “individualized” determination would amount to a paperwork demand. Likewise, as for aliens set to be removed to other countries, the March Guidance already provides them notice and an eminently reasonable opportunity to raise a fear of removal. See App., *infra*, 61a-62a ¶¶ 7-8, 11-13. And respondents have never justified why the district court’s added measures—which, as noted, go well beyond the typical timeframe in expedited removal—are necessary to forestall irreparable harm here. That is especially so given the lack of any realistic risk that they will be tortured with the concurrence of foreign governments in third countries where they have little or no preexisting connection, particularly given that the Executive Branch has determined those countries are acceptable places of removal.

CONCLUSION

This Court should stay the district court’s injunction. The Court should also enter an immediate administrative stay of the district court’s injunction pending its consideration of this application.

Respectfully submitted.

D. JOHN SAUER
Solicitor General

MAY 2025

APPENDIX

District court clarification opinion (D. Mass. May 21, 2025)	1a
Court of appeals order denying stay pending appeal (1st Cir. May 16, 2025)	4a
District court order granting preliminary injunction (D. Mass. Apr. 18, 2025)	6a
DHS guidance regarding third country removals (Mar. 30, 2025)	54a
“Securing Our Borders” executive order (Jan. 20, 2025)	56a
Declaration of Acting Deputy Executive Associate Director Garrett J. Ripa (May 23, 2025)	59a
Declaration of Secretary of State Marco Rubio (May 23, 2025)	70a
Declaration of Acting Assistant Director Marcos D. Charles (May 23, 2025)	74a